



DECISION

Complaint No. : POS/5100/2024/Adv-M

Name and address of the complainant : Mst. Rana Naz widow of Mohammad Raees Khan, House No. A-9/40, Sikandarabad, Liaqtabad, Karachi

Name of the Agency Complained against : Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali Advisor-M

Vetted by :

Subject : DELAY IN APPOINTMENT AGAINST DECEASED QUOTA.

Complaint:

Mst. Rana Naz widow of Mohammad Raees Khan filed her complaint dated 30.10.2024 regarding appointment of her daughter against the deceased quota as her husband Mohammad Raees Khan, Fireman in Karachi Metropolitan Corporation had expired on 14.10.2014, while in service. She requested the intervention of this Institution for resolving her problem.

Proceedings.

2. The complaint after being admitted for investigation under Section 10 of the Establishment of the Office of the Ombudsman for the Province of Sindh 1991, was referred to the Metropolitan Commissioner, Karachi Metropolitan Corporation, for comments vide letter No. POS/5100/2024/Adv-M/27145 dated 6.11.2024, but there was no response. Hearing on this complaint was held on 31.12.2025, which was attended by Deputy Director (Legal), HRM, Karachi Metropolitan Corporation, who stated that record was not available about this complaint. In the next hearing on 6.1.2026 the complainant Mst. Rana Naz was informed about the legal status of "appointment against deceased quota" as per Supreme Court's decision dated 6.9.2024, where such appointments have been held to be "unconstitutional".

6. The matter regarding appointments against deceased quota was ordered upon by the Supreme Court of Pakistan on 26.9.2024 that this provision is in violation of the Constitution. In compliance of this order the Service, General Administration & Coordination Department, Government of Sindh vide Notification No. SORI/ (SGA&CD)2-25/2024 dated 19.12.2024, omitted the relevant Rule from the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules 1974. The Law Department, Government of Sindh based on this Notification issued a circular No. D.Q.1.(12)/2024/ 220 dated 26th December 2024 declared all pending cases of appointment against deceased quota, as null and void

7. However, on 2.9.2025, the Supreme Court decided that their order dated 26.9.2024 would be applicable prospectively and not retrospectively. In compliance of these orders of the Supreme Court of Pakistan dated 2.9.2025, the SGA&CD Department, Government of Sindh amended the Sindh Civil Servant (Appointment, Promotion & Transfer) Rules 1974 by inserting a provision through Notification No. SORI(SGA&CD)2-2/2024 dated 11.12.2025 that only those cases of deceased quota, conclusively decided by the High Court of Sindh prior to the judgement of the Supreme Court dated 26.9.2024 shall be considered under the provisions of omitted Rule 11-A.

Findings.

8. From the above proceedings it is clear that this complaint cannot be considered on merit as decided by the Supreme Court on 26.9.2024, that such recruitment is unconstitutional. Further, this complaint does not fall within the ambit of the Notification dated 11.12.2025 issued by SGA&CD, which states that only those cases which have been conclusively decided by the High Court can be considered.

Decision.

9. As such the above findings clearly indicate that in this complaint the grievance of the complainant cannot be redressed, as appointment against deceased quota has been termed "unconstitutional" in the judgment dated 26.9.2024 of the Supreme Court of Pakistan. Therefore this complaint is consigned to record.

"Given under my hand and seal of office"

Sd /-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 16th January, 2026

